

Authority for Personal Data
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The Minister of Social Affairs and Employment
P.O. Box 90801
2509 LV THE HAGUE
Date

August 22, 2023

Our reference

z2023-02910

Your letter dated

July 7, 2023

Contact person

Your reference

2023-0000330686

Subject

Advice on the draft for the Act on More Security for Flexible Workers

Dear Ms. Van Gennip,

In your letter dated July 7, 2023, the Authority for Personal Data (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft for the Proposal for an Act amending Book 7 of the Civil Code, the Act on the Allocation of Labor by Intermediaries, and the Act on the Financing of Social Insurance to provide more security regarding work and income for flexible workers (Act on More Security for Flexible Workers) (hereinafter: the draft).

An assessment of the personal data aspects of the draft gives the AP reason to make a comment.

Scope of the draft

The scope of this draft can be briefly summarized and is relevant as follows:

- (1) that zero-hour/call contracts are no longer permitted; and
- (2) that the chain determination, which regulates when successive fixed-term employment contracts transition into a permanent employment contract, is tightened.¹

These adjustments do not apply to schoolchildren and students who work an average of no more than 12 hours per week (part 2 of the draft) or 16 hours per week (part 1 of the draft). "Schoolchildren and students" refers to employees who are under 18 years of age or are enrolled in a school as defined by the Compulsory Education Act or at a recognized vocational/higher vocational/university institution.

¹ The chain regulation does not currently apply if there is a break of more than six months between two fixed-term employment contracts (Article 7:668a, first paragraph, of the Civil Code; see also Article 7:691, first and fourth paragraphs, of the Civil Code regarding temporary employment contracts). The draft changes that six-month period to 60 months.

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The processing of personal data occurs when the employer ensures that the employee is enrolled at a recognized educational institution. This verification is done based on proof of enrollment for the current

academic year. The enrollment certificate contains the following personal data: name, date of birth, and student number. The employee requests the proof of enrollment from the educational institution and/or the DUO portal and submits this to the employer.²

Advice

Regarding part (1) of the draft, the explanation states that the employer must verify the proof of enrollment when entering into a zero-hour/call contract with an employee aged 18 or older. The verification must be repeated after one year and at the start of a new academic year.³

However, concerning part (2) of the draft, it is not mentioned at what point(s) the employer may/must verify the proof of enrollment. At this point, the draft is not sufficiently predictable regarding the processing of personal data in application.

The AP advises clarifying in the explanation regarding part (2) of the draft at what point(s) the employer may/must verify the proof of enrollment.

Workload AP

The AP notes that the draft is not expected to necessitate additional efforts by the AP.

Disclosure

The AP intends to make this advice public no earlier than four weeks after the date of this letter on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Sincerely,
Authority for Personal Data,

Aleid Wolfsen
Chairman

² See par. 4.2.6 of the explanation on the draft.

³ See par. 4.2.6 of the explanation on the draft. If the employee is under 18 years of age, a zero-hour/call contract can be offered based on age. For this, the employer requires the identification document as proof.